

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
I	OBJECT, SCOPE AND DEFINITIONS	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
II	GUIDING PRINCIPLES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
II.4	Principles for the Processing of Personal Data	In the development, interpretation and application of this law, the following principles shall be applied harmoniously and comprehensively:	Functional	No Relationship	N/A	N/A	N/A	0	
II.4(a)	Principle of legality in matters of data processing	The processing referred to in this law is a regulated activity that must comply with the provisions of this law and other regulations that develop it;	Functional	No Relationship	N/A	N/A	N/A	0	
II.4(b)	Principle of purpose	The Processing must obey a legitimate purpose in accordance with the Constitution and the Law, which must be informed to the Data Subject;	Functional	No Relationship	N/A	N/A	N/A	0	
II.4(c)	Principle of freedom	Processing may only be carried out with the prior, express, and informed consent of the Data Subject. Personal data may not be obtained or disclosed without prior authorization, or in the absence of a legal or judicial mandate that waives the requirement for consent;	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
II.4(d)	Principle of truthfulness or quality	The information subject to Processing must be truthful, complete, accurate, up-to-date, verifiable and understandable. The Processing of partial, incomplete, fragmented or misleading data is prohibited;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.4(e)	Principle of transparency	In the Processing, the right of the Data Subject to obtain from the Controller or the Processor, at any time and without restrictions, information about the existence of data concerning him or her must be guaranteed;	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
II.4(f)	Principle of restricted access and circulation	The Processing is subject to the limits derived from the nature of the personal data, the provisions of this law, and the Constitution. In this sense, the Processing may only be carried out by persons authorized by the Data Subject and/or by the persons provided for in this law. Personal data, except for public information, may not be available on the Internet or other means of mass dissemination or communication, unless access is technically controllable to provide restricted knowledge only to the Data Subjects or authorized third parties in accordance with this law;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
II.4(g)	Security Principle	The information subject to Processing by the Data Controller or Data Processor referred to in this law, must be handled with the technical, human and administrative measures that are necessary to provide security to the records, preventing their alteration, loss, consultation, use or unauthorized or fraudulent access.	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
II.4(g)	Security Principle	The information subject to Processing by the Data Controller or Data Processor referred to in this law, must be handled with the technical, human and administrative measures that are necessary to provide security to the records, preventing their alteration, loss, consultation, use or unauthorized or fraudulent access;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
II.4(h)	Principle of confidentiality	All persons involved in the processing of personal data that is not of a public nature are obliged to guarantee the confidentiality of the information, even after their relationship with any of the tasks that comprise the processing has ended, and may only supply or communicate personal data when it corresponds to the development of the activities authorized in this law and in accordance with its terms.	Functional	Intersects With	Confidentiality Agreements	HRS-06.1	Mechanisms exist to require Non-Disclosure Agreements (NDAs) or similar confidentiality agreements that reflect the needs to protect data and operational details, or both employees and third-parties.	5	
III	SPECIAL DATA CATEGORIES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
III.5	Sensitive Data	For the purposes of this law, sensitive data is understood to be data that affects the privacy of the Data Subject or whose misuse may generate discrimination, such as data that reveals racial or ethnic origin, political orientation, religious or philosophical beliefs, membership in trade unions, social or human rights organizations or organizations that promote the interests of any political party or that guarantee the rights and guarantees of opposition political parties, as well as data relating to health, sex life and biometric data.	Functional	Intersects With	Data & Asset Classification	DCH-02	Mechanisms exist to ensure data and assets are categorized in accordance with applicable statutory, regulatory and contractual requirements.	5	
III.6	Processing of sensitive data	The processing of sensitive data is prohibited, except when:	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
III.6(a)	Processing of sensitive data	The Data Subject has given explicit authorization for said Processing, except in cases where the granting of such authorization is not required by law;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
III.6(b)	Processing of sensitive data	The processing is necessary to safeguard the vital interests of the data subject and the data subject is physically or legally incapable of giving consent. In these cases, the legal representatives must give their authorization;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
III.6(c)	Processing of sensitive data	The processing is carried out in the course of legitimate activities and with appropriate safeguards by a foundation, NGO, association, or any other non-profit organization whose purpose is political, philosophical, religious, or trade union-related, provided that it relates exclusively to its members or to persons who maintain regular contact with it in connection with its purpose. In these cases, the data may not be disclosed to third parties without the data subject's consent.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
III.6(d)	Processing of sensitive data	The Processing refers to data that is necessary for the recognition, exercise or defense of a right in a judicial process;	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
III.6(e)	Processing of sensitive data	The processing has a historical, statistical, or scientific purpose. In this case, measures must be taken to anonymize the data subjects.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	

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III.7	Rights of children and adolescents	The Treatment will ensure respect for the prevailing rights of children and adolescents. The processing of personal data of children and adolescents is prohibited, except for data that is of a public nature. It is the responsibility of the State and educational institutions of all types to provide information and training to legal representatives and guardians regarding the potential risks faced by children and adolescents concerning the improper handling of their personal data, and to provide them with knowledge about the responsible and safe use of their personal data, their right to privacy and the protection of their personal information and that of others. The National Government will regulate this matter within six (6) months following the enactment of this law.	Functional	Intersects With	Parent or Guardian Opt-In Consent For Minors	PRI-03.13	Mechanisms exist to obtain parental or guardian consent for Personal Data (PD) processing actions through reasonable consumer expectations, when the data subject is a minor.	5	
III.7	Rights of children and adolescents	The Treatment will ensure respect for the prevailing rights of children and adolescents. The processing of personal data of children and adolescents is prohibited, except for data that is of a public nature. It is the responsibility of the State and educational institutions of all types to provide information and training to legal representatives and guardians regarding the potential risks faced by children and adolescents concerning the improper handling of their personal data, and to provide them with knowledge about the responsible and safe use of their personal data, their right to privacy and the protection of their personal information and that of others. The National Government will regulate this matter within six (6) months following the enactment of this law.	Functional	Intersects With	Usage Restrictions of Personal Data (PD)	PRI-05.4	Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to: (1) The purpose(s) originally collected, consistent with the data privacy notice(s); (2) What is authorized by the data subject, or authorized agent; and (3) What is consistent with applicable laws, regulations and contractual obligations.	5	
IV	RIGHTS AND LEGAL CONDITIONS FOR DATA PROCESSING	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
IV.8	Rights of Data Subjects	The Data Subject shall have the following rights:	Functional	No Relationship	N/A	N/A	N/A	0	
IV.8(a)	Rights of Data Subjects	To know, update and rectify your personal data before the Data Controllers or Data Processors. This right may be exercised, among others, with respect to partial, inaccurate, incomplete, fragmented, misleading data, or data whose processing is expressly prohibited or has not been authorized;	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.8(b)	Rights of Data Subjects	Request proof of the authorization granted to the Data Controller except when expressly exempted as a requirement for the Processing, in accordance with the provisions of article 10 of this law;	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.8(c)	Rights of Data Subjects	To be informed by the Data Controller or the Data Processor, upon request, regarding the use that has been made of your personal data;	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.8(d)	Rights of Data Subjects	To file complaints with the Superintendency of Industry and Commerce for violations of the provisions of this law and other regulations that modify, add to or complement it;	Functional	No Relationship	N/A	N/A	N/A	0	
IV.8(e)	Rights of Data Subjects	Revoke authorization and/or request the deletion of data when the Processing does not respect constitutional and legal principles, rights, and guarantees. Revocation and/or deletion will proceed when the Superintendency of Industry and Commerce has determined that the Controller or Processor has engaged in conduct contrary to this law and the Constitution;	Functional	Intersects With	Revoke Consent	PRI-03.4	Mechanisms exist to allow data subjects to revoke consent to collect, receive, process, store, transmit, share and/or update their Personal Data (PD).	5	
IV.8(f)	Rights of Data Subjects	Access free of charge to your personal data that has been processed.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.9	Data Subject's Authorization	Without prejudice to the exceptions provided for by law, the Processing requires the prior and informed authorization of the Data Subject, which must be obtained by any means that can be subsequently consulted.	Functional	Intersects With	Data Subject Authentication	PRI-06.8	Mechanisms exist to utilize reasonable consumer expectations to verify a data subject's identity, prior to taking action to disclose, share, correct, amend and/or delete Personal Data (PD).	5	
IV.10	Cases in which authorization is not required	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	

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IV.11	Provision of Information	The requested information may be provided by any means, including electronic means, as required by the Data Subject. The information must be easily readable, without technical barriers that impede access, and must correspond in its entirety to that contained in the database. The National Government will establish the manner in which the Data Controllers and Data Processors must provide the information of the Data Subject, taking into account the nature of the personal data. This regulation must be issued no later than one year after the promulgation of this law.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
IV.12	Duty to inform the Data Subject	When requesting authorization from the Data Subject, the Data Controller must clearly and expressly inform them of the following: Paragraph. The Data Controller shall keep proof of compliance with the provisions of this article and, when requested by the Data Subject, provide him with a copy thereof.	Functional	Intersects With	Data Subject Authentication	PRI-06.8	Mechanisms exist to utilize reasonable consumer expectations to verify a data subject's identity, prior to taking action to disclose, share, correct, amend and/or delete Personal Data (PD).	5	
IV.12(a)	Duty to inform the Data Subject	The treatment to which your personal data will be subjected and the purpose thereof;	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.12(b)	Duty to inform the Data Subject	The optional nature of the response to the questions asked, when these relate to sensitive data or to the data of girls, boys and adolescents;	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.12(c)	Duty to inform the Data Subject	The rights that you have as the Holder;	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.12(d)	Duty to inform the Data Subject	The identification, physical or electronic address and telephone number of the Data Controller.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
IV.13	Persons to whom information may be provided	Information that meets the conditions established in this law may be provided to the following persons:	Functional	No Relationship	N/A	N/A	N/A	0	
IV.13(a)	Persons to whom information may be provided	To the Holders, their successors or their legal representatives;	Functional	No Relationship	N/A	N/A	N/A	0	
IV.13(b)	Persons to whom information may be provided	To public or administrative entities in the exercise of their legal functions or by court order;	Functional	No Relationship	N/A	N/A	N/A	0	
IV.13(c)	Persons to whom information may be provided	To third parties authorized by the Owner or by law.	Functional	No Relationship	N/A	N/A	N/A	0	
V	PROCEDURES	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
V.14	Inquiries	Data Subjects or their successors may inquire about the Data Subject's personal information held in any database, whether public or private. The Data Controller or Data Processor must provide them with all the information contained in the individual record or that is linked to the Data Subject's identification. The inquiry will be made through the means provided by the Data Controller or Data Processor, provided that proof of this can be maintained. The inquiry will be addressed within a maximum of ten (10) business days from the date of receipt. If it is not possible to address the inquiry within this period, the interested party will be informed, stating the reasons for the delay and indicating the date on which their inquiry will be addressed, which in no case may exceed five (5) business days following the expiration of the first period. Paragraph. The provisions contained in special laws or regulations issued by the National Government may establish shorter terms, taking into account the nature of the personal data.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
V.15	Complaints	The Data Subject or their successors who consider that the information contained in a database should be corrected, updated or deleted, or when they notice the alleged breach of any of the duties contained in this law, may file a complaint with the Data Controller or the Data Processor, which will be processed under the following rules:	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
V.15.1	Complaints	The complaint shall be submitted in writing to the Data Controller or the Data Processor, including the Data Subject's identification, a description of the facts giving rise to the complaint, the address, and any supporting documents. If the complaint is incomplete, the interested party shall be notified within five (5) days of receipt of the complaint to remedy the deficiencies. If the applicant fails to provide the required information within two (2) months of the date of notification, the complaint shall be deemed withdrawn. If the person receiving the complaint is not competent to resolve it, they will forward it to the appropriate person within a maximum of two (2) business days and inform the interested party of the situation.	Functional	Intersects With	Data Subject Empowerment	PRI-06	Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD.	5	
V.15.2	Complaints	Once the complete claim is received, a note stating "claim in process" and the reason for the claim will be added to the database within no more than two (2) business days. This note must remain until the claim is resolved.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
V.15.3	Complaints	The maximum time to address the claim will be fifteen (15) business days, counted from the day following the date of its receipt. If it is not possible to address the claim within this period, the interested party will be informed of the reasons for the delay and the date on which their claim will be addressed, which in no case may exceed eight (8) business days following the expiration of the first period.	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
V.16	Procedural requirement	The Data Subject or successor may only file a complaint with the Superintendency of Industry and Commerce once the consultation or claim process with the Data Controller or Data Processor has been exhausted.	Functional	No Relationship	N/A	N/A	N/A	0	

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VI	DUTIES OF DATA CONTROLLERS AND DATA PROCESSORS	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VI.17	Duties of Data Controllers	Data Controllers shall comply with the following duties, without prejudice to the other provisions of this law and other laws governing their activity:	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
VI.17(a)	Duties of Data Controllers	To guarantee the Holder, at all times, the full and effective exercise of the right of habeas data;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
VI.17(b)	Duties of Data Controllers	Request and keep, under the conditions provided for in this law, a copy of the respective authorization granted by the Holder;	Functional	Intersects With	Data Subject Consent	PRI-03	Mechanisms exist to enable data subjects to authorize the collection, receipt, processing, storage, transmission, sharing, updating and/or disposal of their Personal Data (PD), where the data subject is provided, prior to collection, with: (1) Plain language explaining the potential data privacy risks of the authorization; (2) A means to decline the authorization; and (3) Necessary choice and consent-related criteria required by applicable statutory, regulatory and contractual obligations.	5	
VI.17(c)	Duties of Data Controllers	Inform the Data Subject properly about the purpose of the collection and the rights they have by virtue of the authorization granted;	Functional	Intersects With	Data Privacy Notice	PRI-02	Mechanisms exist to: (1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary; (2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Contain all necessary notice-related criteria required by applicable statutory, regulatory and contractual obligations; (4) Define the scope of PD processing activities, including the geographic locations and third-party recipients that process the PD within the scope of the data privacy notice; (5) Periodically, review and update the content of the privacy notice, as necessary; and (6) Retain prior versions of the privacy notice, in accordance with data retention requirements.	5	
VI.17(d)	Duties of Data Controllers	To keep the information under the necessary security conditions to prevent its alteration, loss, consultation, use or unauthorized or fraudulent access;	Functional	Intersects With	Security of Personal Data (PD)	PRI-01.6	Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.	5	
VI.17(e)	Duties of Data Controllers	Ensure that the information provided to the Data Processor is truthful, complete, accurate, up-to-date, verifiable and understandable;	Functional	Intersects With	Reasonable Data Privacy Practices	PRI-01.11	Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.	5	
VI.17(f)	Duties of Data Controllers	Update the information, promptly communicating to the Data Controller all changes regarding the data previously provided and take other necessary measures to ensure that the information provided to the Data Controller remains up to date;	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
VI.17(g)	Duties of Data Controllers	Correct the information when it is incorrect and communicate the relevant information to the Data Controller;	Functional	Intersects With	Personal Data (PD) Accuracy & Integrity	PRI-05.2	Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by: (1) Keeping PD up-to-date; and (2) Remediating identified inaccuracies, as necessary.	5	
VI.17(h)	Duties of Data Controllers	Provide the Data Processor, as applicable, only with data whose processing has been previously authorized in accordance with the provisions of this law;	Functional	Intersects With	Information Sharing With Third Parties	PRI-07	Mechanisms exist to disclose Personal Data (PD) to third-parties only for the purposes identified in the data privacy notice and with the implicit or explicit consent of the data subject.	5	
VI.17(i)	Duties of Data Controllers	Require the Data Processor at all times to respect the security and privacy conditions of the Data Subject's information;	Functional	Intersects With	Data Privacy Requirements for Contractors & Service Providers	PRI-07.1	Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.	5	
VI.17(j)	Duties of Data Controllers	To process inquiries and claims made in accordance with the terms set forth in this law;	Functional	Intersects With	Data Subject Feedback Management	PRI-06.4	Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.	5	
VI.17(k)	Duties of Data Controllers	Adopt an internal manual of policies and procedures to ensure proper compliance with this law and, in particular, to address inquiries and complaints;	Functional	Intersects With	Publishing Security, Compliance & Resilience Documentation	GOV-02	Mechanisms exist to establish, maintain and disseminate policies, standards and procedures necessary for secure, compliant and resilient capabilities.	5	
VI.17(l)	Duties of Data Controllers	Inform the Data Controller when certain information is under discussion by the Data Subject, once the complaint has been filed and the respective process has not been completed;	Functional	Intersects With	Obligation To Inform Third-Parties	PRI-07.3	Mechanisms exist to inform applicable third-parties of any modification, deletion or other change that affects shared Personal Data (PD).	5	
VI.17(m)	Duties of Data Controllers	Inform the Data Subject, upon request, about the use given to their data;	Functional	Intersects With	Just-In-Time Notice & Updated Consent	PRI-03.2	Mechanisms exist to present data subjects with a new or updated consent request to collect, receive, process, store, transmit, share, update and/or dispose Personal Data (PD) in conjunction with the data action, when: (1) The original circumstances under which an individual gave consent have changed; or (2) A significant amount of time has passed since an individual gave consent.	5	
VI.17(n)	Duties of Data Controllers	Inform the data protection authority when security code violations occur and there are risks in the management of the information of the Data Subjects.	Functional	Intersects With	Cyber Incident Reporting for Sensitive / Regulated Data	IRO-10.2	Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.	5	
VI.17(o)	Duties of Data Controllers	Comply with the instructions and requirements issued by the Superintendency of Industry and Commerce.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
VI.18	Duties of Data Processors	Data Processors shall comply with the following duties, without prejudice to the other provisions of this law and other laws governing their activity: Paragraph. In the event that the roles of Data Controller and Data Processor are held by the same person, the person shall be required to fulfill the duties established for each role.	Functional	Intersects With	Statutory, Regulatory & Contractual Compliance	CPL-01	Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.	5	
VI.18(a)	Duties of Data Processors	Guarantee to the Holder, at all times, the full and effective exercise of the right of habeas data;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VI.18(b)	Duties of Data Processors	Keep the information under the necessary security conditions to prevent its alteration, loss, consultation, use or unauthorized or fraudulent access;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VI.18(c)	Duties of Data Processors	To promptly update, rectify or delete the data in accordance with the terms of this law;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VI.18(d)	Duties of Data Processors	Update the information reported by the Data Controllers within five (5) business days from receipt;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VI.18(e)	Duties of Data Processors	Process the queries and claims made by the Holders in accordance with the terms set out in this law;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VI.18(f)	Duties of Data Processors	Adopt an internal manual of policies and procedures to ensure proper compliance with this law and, in particular, to address inquiries and complaints from Data Subjects;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VI.18(g)	Duties of Data Processors	Register in the database the legend "claim in process" in the manner regulated in this law;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	

FDE #	FDE Name	Focal Document Element (FDE) Description	STRM Rationale	STRM Relationship	SCF Control	SCF #	Secure Controls Framework (SCF) Control Description	Strength of Relationship	Notes
VI.18(h)	Duties of Data Processors	Insert the legend "information under judicial discussion" into the database once notified by the competent authority about legal proceedings related to the quality of the personal data;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VI.18(i)	Duties of Data Processors	Refrain from circulating information that is being disputed by the Holder and whose blocking has been ordered by the Superintendency of Industry and Commerce;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VI.18(j)	Duties of Data Processors	Allow access to the information only to those people who are authorized to access it;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VI.18(k)	Duties of Data Processors	Inform the Superintendency of Industry and Commerce when violations of security codes occur and there are risks in the management of the information of the Holders;	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VI.18(l)	Duties of Data Processors	Comply with the instructions and requirements issued by the Superintendency of Industry and Commerce.	Functional	Subset Of	Data Privacy Program	PRI-01	Mechanisms exist to facilitate the implementation and operation of data protection controls throughout the data lifecycle to ensure all forms of Personal Data (PD) are processed lawfully, fairly and transparently.	10	
VII	ON THE MECHANISMS OF MONITORING AND SANCTION	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I	From the data protection authority	N/A	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.19	Data Protection Authority	The Superintendency of Industry and Commerce, through a Delegate for the Protection of Personal Data, will exercise oversight to ensure that the Processing of personal data respects the principles, rights, guarantees and procedures provided for in this law.	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.19-P1	Data Protection Authority	The National Government, within six (6) months from the date of entry into force of this law, will incorporate into the structure of the Superintendency of Industry and Commerce an office of Delegate Superintendent to exercise the functions of Data Protection Authority.	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.19-P2	Data Protection Authority	The monitoring of the processing of personal data regulated in Law 1266 of 2008 will be subject to the provisions of said law.	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.20	Resources for the performance of its functions	The Superintendency of Industry and Commerce shall have the following resources to perform the functions assigned to it by this law:	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.20(a)	Resources for the performance of its functions	The resources allocated to it in the General Budget of the Nation.	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21	Functions	The Superintendency of Industry and Commerce shall perform the following functions:	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(a)	Functions	Ensure compliance with legislation on the protection of personal data;	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(b)	Functions	To advance the investigations of the case, either ex officio or at the request of a party, and, as a result thereof, to order the measures necessary to enforce the right of habeas data. For this purpose, whenever the right is unknown, it may order that access to and provision of the data, its rectification, updating, or deletion be granted;	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(c)	Functions	To order the temporary blocking of data when, from the request and the evidence provided by the Data Subject, a certain risk of violation of their fundamental rights is identified, and such blocking is necessary to protect them while a final decision is adopted;	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(d)	Functions	Promote and disseminate the rights of individuals in relation to the processing of personal data and implement educational campaigns to train and inform citizens about the exercise and guarantee of the fundamental right to data protection;	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(e)	Functions	To provide instructions on the measures and procedures necessary for the adaptation of the operations of the Data Controllers and Data Processors to the provisions provided for in this law;	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(f)	Functions	Request from the Data Controllers and Data Processors the information necessary for the effective exercise of their functions.	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(g)	Functions	Issue declarations of conformity regarding international data transfers;	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(h)	Functions	Administer the National Public Registry of Databases and issue the orders and acts necessary for its administration and operation;	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(i)	Functions	Suggest or recommend adjustments, corrective measures or adaptations to the regulations that are in accordance with technological, computer or communicational evolution;	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(j)	Functions	To require the collaboration of international or foreign entities when the rights of the Holders are affected outside of Colombian territory on the occasion of, among others, the international collection of personal data;	Functional	No Relationship	N/A	N/A	N/A	0	
VII.I.21(k)	Functions	Any other duties assigned to it by law.	Functional	No Relationship	N/A	N/A	N/A	0	
VII.II	Procedure and sanctions	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
VII.III	From the National Database Registry	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
VIII	DATA TRANSFER TO THIRD COUNTRIES	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	
IX	OTHER PROVISIONS	See FDE for details.	Functional	No Relationship	N/A	N/A	N/A	0	